

The Maharashtra State Legislature Proceedings (Protection of Publication) Act, 1969

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State of Maharashtra - Act

The Maharashtra State Legislature Proceedings (Protection of Publication) Act, 1969

MAHARASHTRA

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The Maharashtra State Legislature Proceedings (Protection of Publication) Act, 1969

Act 32 of 1969

Published on 13 June 1969

Commenced on 13 June 1969

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The Maharashtra State Legislature Proceedings (Protection of Publication) Act, 1969

Maharashtra Act

No. 32 of 1969

[13th June, 1969]

For Statement of Objects and Reasons, See Maharashtra Government Gazette, 1968, Part V, page 23.

An Act protect the publication of reports of proceedings of the Maharashtra State Legislature.

Whereas, it is expedient to protect the publication of reports of proceedings of the Maharashtra State Legislature; It is hereby enacted in the Twentieth Year of the Republic of India as follows:-

1.

Short title and extent.

(1)

This Act may be called the Maharashtra State Legislature Proceedings (Protection of Publication) Act, 1969.

(2)

It extends to the whole of the State of Maharashtra.

2.

Definition.

- In this Act, "newspaper" means any printed periodical work (including daily newspaper) containing public news or comments on public news, and includes a news agency supplying material for publications in a newspaper.

3.

Publication of reports of Legislature proceedings privileged.

(1)

Save as otherwise provided in sub-section (2), no person shall be liable to any proceedings, civil or criminal, in any court in respect of the publication in a newspaper or a substantially true report of any proceedings of either House of the Maharashtra State Legislature, unless the publication is proved to have been made with malice.

(2)

Nothing in sub-section (1), shall be construed as protecting the publication of any matter, the publication of which is not for the public good.

4.

Act also to apply to Legislature proceedings broadcast by wireless telegraphy.

- This Act shall apply in relation to reports or matters broadcast by means of wireless telegraphy as a part of any programme or service provided by means of a broadcasting station as it applies in relation to reports or matters published in a newspaper.

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